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LINE 7

24-CIV-04622

MARTIN AERON ARIAS VS. BERG SENIOR SERVICES, LLC

MARTIN AERON ARIAS
BERG SENIOR SERVICES, LLCHELGA HAKIMI
ANDREW R SHALAUTA

RENEWED MOTION FOR ATTORNEYS' FEES, LITIGATION COSTS, A CLASS REPRESENTATIVE ENHANCEMENT PAYMENT, AND SETTLEMENT ADMINISTRATION COSTS

TENTATIVE RULING:

On June 23, 2026 with written order filed July 29, 2026, the court granted final approval of this class and PAGA (Private Attorney General Act) settlement of \$1,100,00.00. However, the court denied without prejudice the request for attorneys' fees, costs, settlement administer fees, and service award. The court rules upon the amended motion as follows:

Plaintiff's counsel seeks an attorney fee award of \$366,666.00 or one-third of the gross settlement amount and the court grants the request.

The court in reviewing the facts of this case finds that a one-third award is appropriate. (*Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503 (*Lafitte*) ["33 1/3 percent of the common fund is consistent with, and in the range of, awards in other class action lawsuits"]; *Chavez v. Netflix, supra*, 162 App. 4th 43, 66 fn. 11 [final fee award was 27.9% of the benefits]; see *Cotchett, Pitre & McCarthy v. Universal Paragon Corp.* (2010) 187 Cal.App.4th 1405, 1421 [noting the arbitrator found that typical contingency is 33 to 40 percent].) Plaintiff's reliance on a federal case from 2008, *Fernandez v. Victoria Secret Stores, LLC*, (C.D. Cal. Jul. 21, 2008) No. CV 06-04149 MMM SHX, 2008 WL 8150856, at *16 regarding the amount of contingency fees is not precedential authority. The benchmark in the Ninth Circuit is twenty-five (25%). (*Six (6) Mexican Workers v. Arizona Citrus Growers* (9th Cir. 1990) 904 F.2d 1301, 1311; *Lealao v. Beneficial California, Inc.* (2000) 82 Cal.App.4th 19, 24, fn. 1.) However, the court relies on California authority where the one-third is common.

While a common fund fee is appropriate here, even a proper common fund-based fee award should be reviewed through a lodestar cross-check. (*Lafitte, supra*, 1 Cal.5th at p. 503.) Plaintiff's counsel shows a lodestar of \$214,460.00 with hourly rates requested ranging from \$475.00 to \$1,020.00. (Perez Decl., ¶26.)

In reviewing the evidence submitted, the court finds that the hourly rates are reasonable for San Mateo County. " 'The reasonable hourly rate is that prevailing in the community for similar work.' " (See *Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1157 [quoting *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095].) Counsel provide a variety of examples in the San Francisco Bay Area, including a San Mateo County case, where their hourly rate has been approved.. Counsel also cite to the Laffey index which may be used by the trial court (*Syers*

Properties III, Inc. v. Rankin (2014) 226 Cal.App.4th 691, 702.) The court may also use its own experience to determine the value of attorneys' fees. (*Spencer v. Collins* (1909) 156 Cal. 298, 306 ["The value of attorney's services is a matter with which a judge must necessarily be familiar. When the court is informed of the extent and nature of such services, its own experience furnishes it with every element necessary to fix their value."]; *Reynolds v. Ford Motor Company* (2020) 47 Cal.App.5th 1105, 1113-14 ["The trial court acted well within its discretion in using 'the prevailing market value in the community for similar legal services' relying on its personal knowledge and familiarity with the area legal services, as the 'touchstone' for determination" of the reasonable hourly rates." (citations omitted)]). This court had extensive experience in class action and other common fund cases while an attorney and has made decisions about attorneys' fees and costs frequently during her time as a judicial officer. The court finds the hourly rates reasonable.

The court has reviewed all the billing statements submitted by counsel and finds the work performed reasonable. If the court was awarding fees based solely on the hours worked, it would make some reductions, but since the lodestar is just a cross-check, the court finds the hours reasonable. The court compared the work performed in this case to the case of *Ayala v. RHR California Services, LLC*, San Mateo case no. 23Civ02830, one of the cases cited in support of the attorneys' fees. Although there was similarities in the complaint and motion for preliminary approval (the only documents reviewed by the court), there were also differences and it is efficient to build upon work already done when litigating a similar case. The case was appropriately staffed.

The lodestar amount is only \$238,297.50, lower than the requested fees of \$366,666.00. However, the court awards the requested multiplier. The lodestar amount " 'may be adjusted by the court based on factors including ... (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award.' ([Citations])" (*Center for Biological Diversity v. County of San Bernardino* (2010) 185 Cal.App.4th 866, 899.) " '[T]he purpose of a fee enhancement is primarily to compensate the attorney for the prevailing party at a rate reflecting the risk of nonpayment in contingency cases as a class.' [Citation] '[T]he unadorned lodestar reflects the general local hourly rate for a fee-bearing case; it does not include any compensation for contingent risk, extraordinary skill, or any other factors a trial court may consider.... The adjustment to the lodestar figure, e.g., to provide a fee enhancement reflecting the risk that the attorney will not receive payment if the suit does not succeed, constitutes earned compensation; unlike a windfall, it is neither unexpected nor fortuitous. Rather, it is intended to approximate market-level compensation for such services, which typically includes a premium for the risk of nonpayment or delay in payment of attorney fees.' [Citation] In cases involving the enforcement of constitutional or statutory rights, "such fee enhancements may make such cases economically feasible to competent private attorneys. [Citation.] '[M]ost lawyers of this quality do seem to consider the prospects of success and the fee recoverable before adding to their crowded calendars a case in which payment is contingent.' " [Citation.] (*Ibid.*) The trial court can consider contingent risk and delay in determining the reasonable hourly rates of the attorneys and not consider it when considering a multiplier.

(*California DUI Lawyers Assn. v. Department of Motor Vehicles* (2022) 77 Cal.App.5th 517, 537.)

The court believes that a multiplier is appropriate here because of the fact that plaintiff's counsel has had to wait to get paid for the work they have performed and plaintiff's counsel worked efficiently to resolve the case. The court seeks to award the efficient work. While there were no novel issues in this case, the recovery is significant for most class members.

COSTS

The court approves the costs of \$15,000.00 to class counsel as reasonable and necessarily incurred. The court also approves the fees of \$8,600.00 to the settlement administrator, Phoenix Settlement Administrators, as reasonable and necessarily incurred.

SERVICE FEE AWARD

Class representative Martin Aeron Arias requests a service award of \$10,000.00 for his service. The court awards \$7,500.00 to Arias as a reasonable service fee award. The court acknowledges the important role he played in the litigation. While he signed a general release, he provides no facts to demonstrate that he had any claim different than the class members. While the court is aware of reputation harm, the law protects an employee from being retaliated against by an employer and if plaintiffs believe that any employer is retaliating against her for being a plaintiff in this lawsuit, they shall notify their counsel who shall immediately notify the court. The court has not been advised at any time during the course of this litigation of any alleged retaliation. *Gentry v. Superior Court* (2007) 42 Cal.4th 443 discusses the fear of retaliation as a reason an employee might not bring a lawsuit, but our Supreme Court states that the statistics demonstrated that enforcement mechanisms to sanction retaliation were working. (*Id.* at pp. 460-461.) The court acknowledges the 30 hours that Arias spent on the case and the incentive award gives him \$250 per hour. He did not have to sit for a deposition, respond to discovery or attend the mediation or any court hearings. Although other judges may award more or less, each judge decides each case on its own merits. This court concludes that for this case, \$7,500.00 for Arias is the appropriate service award.

The parties are either to email Department 4 by 11:00 a.m. on September 15, 2026 with a proposed hearing date for the compliance hearing, or properly contest the tentative ruling and suggest at the hearing a compliance hearing date.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The court modifies San Mateo Local Rule to allow the parties to add additional information that they believe is necessary, but only when it is not inconsistent with the tentative ruling issued by the court. The court also suggest that the parties add the findings from the preliminary approval ruling since the final settlement approval summarizes those findings.

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LINE 8

25-CIV-00357

MARK FARINO VS. NATALIE LANE

MARK FARINO
NATALIE LANE

PRO SE
DAVID BANIE

DEFENDANT NATALIE LANE'S MOTION FOR ORDER COMPELLING RESPONSES TO WRITTEN DISCOVERY

TENTATIVE RULING:

Defendant Natalie Lane seeks an order compelling Plaintiff Mark Farino to respond to Defendant's Form Interrogatories (FROGS), Set One, Amended Special Interrogatories (SROGS), Set One, and Amended Request for Production of Documents (RFP), Set One.

Defendant's motion to compel responses is GRANTED.

Defendant's request for sanctions is GRANTED in part.

As an initial matter, the Court notes that Plaintiff's opposition was filed eight days late, on September 9, 2026 – after Defendant had already filed a reply brief the day before, despite that no opposition was filed. The Court exercises its discretion to consider the Plaintiff's late-filed opposition and notes that, in doing so, the outcome of this motion was not changed.

BACKGROUND

Discovery Requests

On March 13, 2026, Defendant propounded a set of requests for production of documents, special interrogatories, and form interrogatories to Plaintiff via email. (Banie Decl., ¶ 2.) Plaintiff did not respond. (*Id.*, ¶¶ 8, 9.) However, Defendant withdrew those discovery demands, which were directed at the First Amended Complaint, and served amended discovery demands directed at the now-operative Second Amended Complaint. (*Id.*, ¶ 4.)

On April 24, 2026, Defendant served Plaintiff, via email and U.S. mail, with Defendant's Amended RFP (Set One), Defendant's FROGS (Set One), Defendant's Amended SROGS (Set One), and the Amended Declaration of David Banie supporting the SROGS. (*Id.*, ¶ 3, Exs. A-D.)

On May 27, 2026, Defense counsel sent a letter to Plaintiff reminding him that his responses to the propounded discovery demands would become due in a few days. (*Id.*, ¶ 6, Ex. G.) On May 29, 2026, Plaintiff responded with a letter alleging that the service by email was defective because it was sent on an unrelated email thread. (*Id.*, ¶ 7.) However, the letter did not address that the documents were also sent by U.S. mail. (*Id.*, ¶ 8.) Further, Plaintiff previously acknowledged receiving service of the discovery demands by both mail and email in a
